

Stereo HCJAD 38
Judgment Sheet

IN THE LAHORE HIGH COURT, LAHORE.

JUDICIAL DEPARTMENT

Case No. W.P. No.48872 of 2017

Subay Khan	Versus	Secretary, Labour, Government of the Punjab
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JUDGMENT

Date of Hearing:	20.12.2018
Petitioner by:	Mr. Sheraz Zaka, Advocate.
Respondents by:	Rai Shahid Saleem Khan, Assistant Advocate-General. Ms. Sehar Zareen Bandial, Advocate and Mr. Ahmad Pansota, Advocate/ <i>Amicus Curiae</i> Sadia Malik, Assistant Attorney- General for Pakistan on Court's call. Raj Maqsood, Law Officer.
Assisted by:	Rana Shaher Yar, Research Officer Lahore High Court, Research Centre.

Jawad Hassan, J. - The Petitioner has sought indulgence of this Court for enforcement of the fundamental rights of domestic workers by directing the government to initiate proper legislation for them. The minimum wages and working conditions of the domestic workers require specific legalization. It is pertinent to mention here that there is no law in existence which could regulate the wages and working conditions of domestic workers. Therefore, this Court being guardian of fundamental rights of people of Pakistan is constrained to

play its due role in order to remove the above said discriminatory treatment.

I. Proceedings in the Court: Background

2. The Petitioner had earlier filed Writ Petition No. 7870/2015, titled Subay Khan v. Federation of Pakistan and 2 others, praying for directing the Respondents to notify/provide guidelines with respect to minimum wages of the domestic workers as they are not regulated by any law in Pakistan. This Court vide order dated 09.12.2015 held that the domestic workers are being unduly discriminated, and the issue of minimum wages for domestic workers requires legislation and is a policy issue. This Court further directed the Secretary, Labour & Human Resource Department, Government of Punjab to consider the possibility of legislation on the subject.

3. Thereafter, the Petitioner filed the contempt petition, Crl. Orgl No.46744-W/2017, against the Secretary Labour to punish him under Sections 3 & 4 of the Contempt of Court Ordinance, 2004 read with Article 204 of the Constitution of Pakistan, 1973 (the “Constitution”). On the very first date, i.e. 30.06.2017, this Court converted the Contempt into a writ petition as it involved an important public issue regarding the rights at work of domestic workers and protecting them from abusive working condition.

II. Petitioner’s Arguments:

4. Mr. Sheraz Zaka, the learned counsel for the Petitioner *inter alia* submitted that under Article 3 of the Constitution, all the domestic workers have to be protected in Pakistan. To its dismay domestic workers are exposed to exploitation and hazardous working

conditions and there is no proper legislation to protect their fundamental rights.

5. The learned counsel for the Petitioner states that regarding the issue in hand, this Court in a reported judgment cited as **“Subay Khan v. Federation of Pakistan through Secretary and Ministry of Law and 2 others”** (PLJ 2018 Lahore 224) has held that Pakistan is not a signatory to the Domestic Workers Convention, 2011 but any such convention carries persuasive value by relying on **Human Right Case No.29388-K of 2013** (PLD 2014 SC 305). It has further been held that equal work must carry equal pay, this principle rests on Article 3. He also relied on **“Ms. Shehla Zia and others v. WAPDA”** (PLD 1994 SC 693). He submits that pursuant to recent judgment of Subay Khan, *supra*, the Government has prepared Punjab Domestic Workers Policy, 2015 and the Draft Punjab Domestic Workers Act, 2016.

III. Respondents’ Comments:

6. On the other hand, the Law Officer, Raj Maqsood, appeared and stated that the Labour and Human Resource Department has finalized draft of the Punjab Domestic Worker Act, 2017 which was prepared after obtaining comments and consultation from stakeholders. He placed on record two letters dated 07.03.2018 which were addressed to the Women Development Department Country Director, ILO Country Office; Punjab Women’s Economic Empowerment and Country Representative, UNICEF; other various Government Departments and some eminent persons who are the main stakeholders for seeking their recommendations and inputs on

the Draft Act. Learned law officer states that already a Draft Act is under consultative process in which the Department is receiving the recommendations/inputs from all relevant persons.

IV. Amicus Curiae's Arguments:

7. Ms. Sahar Zareen Bandial and Mr. Muhammad Ahmad Pansota, Advocates, were appointed the *Amicus Curiae* by this Court on 28.02.2018, who assisted the Court in the matter in hand.

8. Ms. Sahar Zareen Bandial, Advocate appeared and stated that already the Federal Government has prepared a draft Domestic Workers Employment Act, 2016 which, according to her knowledge, has been passed by the Senate but yet to be enacted. She further stated that recently India has also prepared the Draft National Policy on Domestic Workers (full-time to part time, skilled-unskilled) as recommended by the Task Force on Domestic Workers.

9. Barrister Muhammad Ahmed Pinsota, Advocate stated that relevant department to administer and regulate the Draft Bill in the Province of Punjab is (i) Labour and Human Resource Department (ii) Social Welfare Department, and once the law is enacted, the Departments will be able to administer and implement the same by amending Schedules 1-2 of the Punjab Government Rules of Business, 2011.

10. It has also been argued by the learned Advocates/*amicus curiae* that the fundamental rights of domestic workers have been exploited by the employers which are sheer violation of Article 3 of the Constitution. They further state that the workers employed in industrial sector are protected by various labour laws whereas

workers employed in the domestic sector (residence, small shops and business etc.) have neither been recognized nor been protected by any legislation for their welfare. Reliance was placed on the cases as: **M.C. Mehta v. Union of India & Ors** (Writ Petition (Civil) No.13381 of 1984), **APNS v. Federation of Paksitan** (PLD 2012 SC 1), **M/s. Amin Fabrics Ltd. V. Commissioner** (1998 PLC (C.S.) 694), **Javed Iqbal v. Federation of Pakistan** (2018 PLC (C.S.) 228 Islamabad), **Transport Corporation v. DTC Mazdoor Congress** (AIR 1991 SC 101), and **Consumer Education and Research Centre v. union of India** (AIR 1995 SC 922).

V. The Proceedings and the Committee:

11. Before rendering my findings, I would like to mention here that this case was firstly taken by the then Hon'ble Chief Justice of this Court (Syed Mansoor Ali Shah, C.J.) who passed specific directions to the Secretary, Labour & Human Resource Department, Government of Punjab with the hope and expectation that Government of Punjab will consider the possibility of legislation on the subject and when the contempt petition was filed for implementation of the said direction, his lordship converted the same into writ petition by considering the matter, an important public issue. The conversion of the petition treating the issue in hand as an important public issue is highly appreciable.

12. On 13.03.2018, this Court ordered that the Department may constitute a Committee after consultation with experts, social workers, legal fraternity, academics and other stakeholders to finalize

all recommendations and inputs received on the Draft Act for its practical implementation.

13. On 19.03.2018, the learned Law Officer appeared on behalf of the Department and informed that the 2015 Policy was formulated which was shaped into a Draft Act after getting recommendations/input from various Government departments, representatives of trade union, NGOs and representatives of Domestic Workers. The Draft Act was sent to Law & Parliamentary Affairs Department for vetting. The Law & Parliamentary Affairs Department raised some observation on the Draft Act. The Draft Act is again circulated amongst Government Departments; ILO Country Office for Pakistan, UN Women; Country Representative UNICEF; and members of Provincial Tripartite Consultation Committee (PTCC) including representatives of employers and employees for input/recommendations especially in the light of best practices and model policy/laws around the world. The working on the Draft Act is carried out by the Department's body, the Directorate General Labour Welfare, Punjab under the Director General, Director Labour (HQ) and Director (Law & Policy). He further submits that the Department will constitute a Committee through assistance of concerned Assistant Advocate General, Punjab.

The following names were given for the said Committee:

- a. Dr. Muhammad Azeem, Assistant Professor, Lahore University of Management Science.*

*b. Ms. Arooma Shahzad, President, Domestic Workers Union,
Deputy General Secretary, Pakistan Workers Federation
(PWF)*

c. Nighat Daad, Lawyer/HR Activist.

d. Bushra Khaliq, HR Activist.

e. Ume Alaila Azhar, Home Net Pakistan

f. Dr. Javaid Gill, Mehnat

g. Khalid Mehmood, Labour Education

h. Hanif Ramay, Umang Development Foundation

i. Tariq Awan, PILER

j. Irfan Mufti, SAP PK.

k. Sadia Malik, Assistant Attorney-General for Pakistan.

*l. Rai Ashfaq Ahmed Kharal, Assistant Advocate-General for
Punjab.*

This Court further directed that the Committee will include the names of aforementioned persons and the learned counsel and Law Officers and receive all recommendations and inputs from them and will finalize the Draft Act after receiving the same.

14. On 17.12.2018, Mr. Muhammad Ahmad Pansota, Advocate has informed the Court that pursuant to committee meeting with Secretary Labour, the recommendations were incorporated into revised draft which was then approved by the Cabinet and now is before the Provincial Assembly for its enactment.

VI. Analysis:

15. Unfortunately, and undoubtedly, Pakistan is enlisted in the list of developing countries and a majority of people are leading penury

life. The people of the country are compelled by the circumstances to make their livelihood even by sending their women and offsprings for labour.

16. The domestic workers comprise the majority of employed persons in Pakistan's large, unregulated and informal economy, and are particularly vulnerable to exploitation, financial and otherwise. Domestic work is considered by the ILO as one of the occupations with the worst quality of employment – characterized by long work days, low pay and limited social protection coverage.

17. There are several global reports which describe the condition of the Domestic Workers. The '*Effective Protection for Domestic Workers: A Guide to Designing Labour Laws*' by the International Labour Office, Geneva, has elaborated as follows:

Domestic work is one of the world's oldest occupations. Domestic workers may cook or clean, or care for children, the elderly or the disabled, tasks that have been traditionally assigned to women in the vast majority of societies and that have been largely uncompensated. However, domestic work may also include gardening, chauffeuring or providing security services, tasks more often performed by men. In developing and developed countries alike, the domestic work sector work absorbs significant numbers of workers, many of whom belong to the poorest segments of society with little access to other work of employment, generally as a result of limited educational opportunities. According to the most recent global and regional estimates produced by the ILO, at least 52.6 million women and men above the age of 15 were domestic workers in their main job. This figure represents some 3.6 per cent of global

wage employment. Women comprise the overwhelming majority of domestic workers; 43.6 million workers or some 83 per cent of the total. Domestic work is an important source of wage employment for women, accounting for 7.5 per cent of female employees worldwide.

18. Moreover, there are several similar detailed reports dealing with the Domestic Workers around the world which provide the above conditions of the Domestic Workers, including the '*Domestic Plight: How Jordanian Law, Officials, Employers and Recruiters fail abused Migrant Domestic Workers*' presented by Human Rights Watch and Tamkeen. These above reports have been presented before this Court and have been read in detail.

19. In Pakistan, the Domestic labour is the most hazardous and fatal profession as has been indicated by various news reports of violence against child domestic workers. An article published in the Tribune, Regulating Domestic Work, very well describe the current situation of the Domestic Workers in Pakistan, as follows:

Domestic work is one of the oldest professions in the history of the world with highest workforce participation by women and children. It is mostly undervalued and a low-paid activity. The undervaluation stems from the assumption that women are innately capable of performing this work, thus it is considered unskilled. Moreover, it is considered an extension of the unpaid domestic work, which in itself is unregulated and unaccounted for. An ILO report estimated that around 4 to 10% of total employment in the developing countries is in

domestic work. While males are also employed as domestic workers (like gardeners, chauffeurs, cooks and guards), a large percentage of the domestic workers are women (engaged for home, child and elderly care).

20. The Child Rights Movement (CRM) Punjab, the Institute for Social Justice (ISJ), Society for the Protection of the Rights of the Child and Pakistan Institute of Labour Education & Research (PILER) have presented a detailed joint report, '*The unending plight of child domestic workers in Pakistan: Exploitation, abuse, torture, rape and murder*'. They have noted in this report as follows:

There is no end to the plight of Child Domestic Workers (CDWs). They are in millions. They are continuously sold, exploited, abused, raped, sodomized, tortured and killed. It is unfortunate that no other occupation in Pakistan has resulted deaths of children than Child Domestic Labour (CDL). Since January 2010 to June 2013, about 41 cases of CDWs are reported in the media and by civil society organizations. Of these children, 19 died due to severe torture inflicted on them were poisoned to death by their employers. This brief paper shows the severity of the issue and general acceptance of internal trafficking, severe torture, abuse, exploitation, forced labour, slavery and murders of helpless and innocent CDWs in the society and the due permission of the State. Continuously disturbing reporting of torture and murders of CDWs indicate the moral decay of society and the state; both have allowed

powerful class to brutally torture and murder children because they belong to poor, marginalized and working class families.

In Pakistan, CDWs are deprived of all fundamental rights given in the Constitution of Pakistan (such as Articles 11, 25 (3), 25A) and even the right to life, merely for the reason of protecting the household sanctity. The government cannot bring in the CDLs in the ambit of labour laws because households cannot be monitored; if monitored, the household sanctity would be violated.

Pakistan acknowledges and prohibits forced labour, external trafficking, slavery and worst forms of child labour only in documents but yet has not been able to take any administrative measures to ban CDL and stop brutal torture and murders of helpless innocent CDWs, mainly girls. Only a few civil society organizations (CSOs) have repeatedly protested and written to all the higher authorities for banning child domestic labour (CDL) by inserting it in the list of banned occupations in the Employment of Children Act (ECA), 1991, but no authority including courts took any measures to protect these millions of CDWs. Through media, a few civil society organizations (CSOs) have also brought to the attention of the UN agencies in Pakistan but all have turned a deaf ear to the issue rather seems the best allies to the powerful class.

The above report further concludes and recommends as follows:

The continuous reporting of torture and murder of child domestic workers indicate moral decay of the society and the

state which is letting children to be brutally tortured and murdered because they belong to poor and marginalized families. Just in the name of household sanctity, shall our state allow children to be deprived of all fundamental rights given in the Constitution of Pakistan (such as Articles 11, 25 (3), 25A) and even the right to life, merely for the reason of household sanctity? There is need to put an end to this discrimination, and to protect life, security and liberty of citizens even if they are servants.

In light of the UNCRC and its Optional Protocol on Sale of Children, ILO's Conventions 138, 182 and 189 and the Constitution of Pakistan, CDL should be declared a form of slavery and the worst form of child labour and should immediately be banned in all provinces, Azad Jammu and Kashmir, Gilgit Baltistan, FATA and Islamabad Capital Territory by putting it in the list of banned occupations provided in the ECA, through a notification in the Gazette. In addition, the government should pursue brutal torture and murders of CDWs and financially and legally help victims' families.

VII. International Treaties Signed/Acknowledged by Pakistan on Labour

21. It has been submitted that since 1947, Pakistan is a member of the International Labour Organization (the "ILO"). Pakistan has ratified 34 ILO's Conventions including core conventions on Forced Labour Convention, 1930 (No. 29), Freedom of Association and

Protection of the Rights to Organise Convention, 1948 (No. 87), Right to Organise and Collective Bargaining Convention, 1949 (No. 98), Equal Remuneration Convention, 1951 (No. 100), Abolition of Forced Labour Convention, 1957 (No. 105), Discrimination (Employment and Occupation) Convention, 1958 (No. 111), C138 – Minimum Age Convention, 1973 (No. 138) and Worst Forms of Child Labour Convention, 1999 (No. 182). But Pakistan hardly complied with the ILO's core conventions as well with fundamental rights provisions given in the Constitution. The Convention on Domestic Workers, formally the Convention concerning Decent Work for Domestic Workers is a convention setting labour standards for domestic workers. It is the 189th ILO convention and was adopted during the 100th session of the International Labour Organization. It entered into force on 05.09.2013.

VIII. Relevant Articles of the Constitution Protecting Domestic Workers.

22. For protection of fundamental rights of domestic workers it would be advantageous to conduct the comprehensive survey of various provisions of the Constitution wherein the rights of every citizen have been guaranteed and protected. Article 3 states that the State shall ensure the elimination of all forms of exploitation and the gradual fulfillment of the fundamental principle, from each according to his ability, to each according to his work. Article 4 states that to enjoy the protection of law and to be treated in accordance with law is the inalienable right of every citizen. Article 8 provides that any law inconsistent with the rights of citizens be declared as void.

Article 11 restricts and forbids the slavery and forced labour and is hereby reproduced for ready reference:

“11. Slavery, forced labour, etc., prohibited.- (1) Slavery is non-existent and forbidden and no law shall permit or facilitate its introduction into Pakistan in any form.

(2) All forms of forced labour and traffic in human beings are prohibited.

(3) No child below the age of Fourteen years shall be engaged in any factory or mine or any other hazardous employment.

(4) Nothing in this Article shall be deemed to affect compulsory service-

(a) By any person undergoing punishment for an offence against any law; or

(b) required by any law for public purpose:

Provided that no compulsory service shall be of a cruel nature or incompatible with human dignity.”

23. Article 25 states that all citizens are equal and there should be no discrimination on any basis. Article 25-A provides that the State should provide free and compulsory education to all children of the age of five to sixteen years. Article 37 ensures that state should promote social justice and eradicate social evils. Article 38 guarantees that state should play its due role in the social and economic well-being of the people.

24. A discreet study of aforementioned constitutional provisions envisages that the Domestic Workers in Pakistan are rightfully entitled to all fundamental rights mentioned above i.e. the right to

elimination of exploitation, right to life including right to livelihood, right to equality, right to trade and business, right to education, and all other rights enshrined in Article 37 and Article 38 of the constitution. A Right is a power, privilege, faculty, or demand, inherent in one person and incident upon another. Rights can be moral or legal. Along with legal rights there exist moral rights as well, which in general have subjective support while legal rights have the objective support of the State. Legal right is an interest, which is recognized and protected by the rule of legal justice. Every right has interests but all interests cannot be rights. Statues made by the State doesn't really give rights but in contrary deprives citizens from certain rights because all citizens are born with rights, Governments through such statues control the behaviors of individuals by drawing perimeters around those rights citizens possess by birth. The law may provide mechanism for enforcement of right but the existence of the right does not depend upon the creation of such mechanism. The right exists prior to and independent of the mechanism of enforcement. It is quite obvious that unless a right is recognized by the State it would not have any validity or weight to be imposed upon others. Hence, this right has just been recognized by the Government and will be protected by the Government and the Judiciary.

IX. Superior Courts as Guardian of Rights of Labour:

25. Following is the comprehensive survey of landmark judgments passed by Honorable Superior Courts safeguarding fundamental rights of labour.

26. In **Darshan Masih Alias Rehmatay's** case reported at **PLD 1990 SC 513**, the honorable Supreme Court termed the matter of bonded labour and illegal detention by employers in brick kiln industry falling within the ambit of public interest litigation. The honorable Court took cognizance for the enforcement of Fundamental Rights of bonded labour. The Honorable Court defined the expression "forced labour" with illustrations of its different forms, in such a manner, so as to minimize any confusion. In **Human Rights Commission Of Pakistan's** case reported at **PLD 2009 SC 507**, the Honorable Court laid ratio that all contracts whereby a person agrees to render services without wages or for nominal wages, forfeits the freedom of employment or movement or forfeits the right to appropriate or sell, at market value, any of his property or product of his labour, are void. The Honorable Court goes on to hold that Article 23 guaranteeing the right to hold and dispose of property which indicates that the Legislature in its wisdom envisaged an obligation to work against one's wishes for settlement of a private debt not to be one created for a public purpose nor a fetter upon the right of movement in the said context as a reasonable restriction in the public interest. It was further held that while forced labour and clog on the freedom of movement by way of consideration for the repayment of debt would be impermissible, the outstanding amount could be recovered through normal legal channels. In the matter of H.R. CASES NOS.16360 of 2009, 1859-S & 14292-P of 2010 reported at **PLD 2011 SC 37**, the Honorable Court has dealt with issue of minimum wages and have directed that the judgment shall be

considered a guideline for all the executive departments in future while fixing the wages of the employees being engaged by the government organizations on contract basis or under any other programme funded by the government or any other agency. In **All Pakistan Newspapers Society and others’ case** reported at **PLD 2012 SC 1** the Honorable Court made following observations:

“[the word 'life' is very significant as it covers all facets of human existence. Life includes all such amenities and facilities which a person born in a free country is entitled to enjoy with dignity, legally and constitutionally. Further, the right to life also includes the right to livelihood. Under Article 3 of the Constitution, the State is bound to ensure the elimination of all forms of exploitation and the gradual fulfilment of the fundamental principle, from each according to his ability to each according to his work; therefore, a right person is required to be engaged in the right job and there should not be any exploitation whatsoever.]”

27. The Honorable Islamabad High Court in **Javed Iqbal’s case** reported at **2018 PLC (C.S.) 228** held that no one would be willingly to provide services for another for less than the minimum wage especially when he knew that under the law he was entitled to get minimum wage from his employer. When a person provided labour or service to another against remuneration which was less than the minimum wage, he was acting under the force of some compulsion which deprived him to work though he was paid less than what he

was entitled under the law to receive. Person would accept a salary less than a minimum wage when he was in no position to bargain with the employer. Every person who had provided labour or service to another was entitled at least to the minimum wage. If anything less than the minimum wage was paid then he could complain of violation of his Fundamental Right.

28. It would be pertinent to mention here one of classic domestic worker abuse cases i.e. Tayyaba's case. This is only one of the few cases that have surfaced in the past regarding domestic worker child abuse. The Hon'ble Chief Justice of Pakistan took suo motu notice of child victim Tayyaba who being domestic worker was subjected to severe torture by a judicial officer. Consequently FIR was lodged against the judicial officer. The medical examination of the child domestic worker revealed that *"Though the child claimed she had fallen from stairs and was burnt while switching on the television, the wounds showed she had been tortured for a long time and harassed/forced by someone to give that statement. The burn injuries were not caused by electric current and I can surely say someone had [tortured her with] hot iron rods."*

29. In the aforementioned case reported at **2018 PCr.LJ 841** the Hon'ble Islamabad High Court observed that minor was working as a servant at the residence of accused persons; she was left alone at the residence and was locked out till late; that the minor had not been provided food and was found by some of the witnesses in an injured condition; that the minor often asked a servant from a neighbouring

house for food; that the minor was not given proper treatment for her injuries. The Honorable Court held accused persons guilty and were sentenced to simple imprisonment of one year with fine of Rs. 50,000 each.

X. Recent Developments:

30. During the pendency of instant petition this Court was informed by Rai Shahid Saleem Khan, Assistant Advocate-General that Punjab Government has enacted “The Punjab Domestic Workers Act, 2019 (II OF 2019)”.

XI. Summary of the Act of 2019:

31. The Act of 2019 prohibits the working of a child below the age of 15 years in a household in any capacity, and allows the child under the age of 18 years to light work in a household. The light work has also been defined in the Act of 2019 and means a domestic work which is part-time in nature and is not likely to harm health, safety and education of a domestic worker. It further restricts the bonded labour system and forced or partly forced labour system, and also prohibits their discrimination. The employer cannot assign extra work to the domestic worker without free will of the domestic worker and extra remuneration, and is required to provide dignified working conditions and occupational safety and health measures to the domestic worker. The Act of 2019 also gives benefits for a domestic worker, including sickness benefits and medical care during sickness and medical care of dependents, injury benefits, disablement pension and survivor’s pension under the Punjab Employees Social Security Ordinance, 1965 and the rules made thereunder. The Act of 2019

requires every employment or appointment of a domestic worker to be subject to issuance of a letter of employment showing the terms and conditions of his employment including nature of work and amount of wages, and restricts to perform any work other than what is specifically mentioned in the letter of employment. The Act further restricts working for more than eight hours in a day of a domestic worker and entitles them to over time rates. It further provides a ceiling on weekly working time, which cannot exceed fifty-six hours. Moreover, it entitles them to leave and holidays, wages during leave and holidays, maternity benefits, accommodation, medical examination, vaccination and inoculation. The Act further requires the employer to pay at least the minimum wage. Where a domestic worker relinquishes any right conferred by the Act of 2019, the relinquishment shall be null and void in so far as it purports to deprive him of such right. Further, the Act of 2019 provides its own mechanism for enforcement of the rights granted to the Domestic Workers under the Act of 2019, and provides punishment for violation of any provision of this Act. This Act establishes a governing body and requires every domestic worker to make an application for registration in order to benefit from the fund created under this Act. I appreciate the efforts of the Government and the Labour Department for the proper legislation on the issue of domestic worker. A specific direction is issued to the concerned Departments that the Act of 2019 be implemented by reflecting the same in the Schedule 2 of the Punjab Government Rules of Business, 2001 and to make all the Rules as prescribed under Section 2(q) read with Section

38 of the Act of 2019 to enable the Department to applicable the law in letter and spirit. It is further directed that without any delay the authority be established and notified and all the measures be adopted to make the Act of 2019 functional as it is necessary to protect the right of the domestic workers, to regulate their terms of employment and working conditions of service, to provide them social protection and ensure their welfare and to provide for the matters ancillary thereto. The Department at its own, should also raise awareness amongst the people about the rights of the domestic worker to avoid further exploitation.

32. While the aforesaid enactment is a positive step towards protection of domestic workers, it may also be suggested that a day in the year may be notified as a “Domestic Workers Day” alongwith the “Labour Day” to share sympathies with the domestic workers. The Non-Governmental Organizations should also come forward to play their due role in creating awareness amongst general public regarding rights of domestic workers. A comprehensive social and electronic media campaign be launched by the government for creating awareness amongst people regarding plight of domestic workers and aforesaid new enactment. Moreover, the provincial Government is also directed to frame rules under the Punjab Domestic Workers Act, 2019 for effective implementation/enforcement of the Act.

33. Before parting with the judgment, this Court would like to pay homage to the Hon’ble Mr. Justice Syed Mansoor Ali Shah, the then Hon’ble Chief Justice who firstly decided the writ petition concerning rights of domestic workers and subsequently converted

the contempt petition into writ petition as it involved an important public issue. Due to the cognizance taken by this Court the Government has promulgated the aforesaid Act. This Court appreciates the legal acumen and the assistance rendered by the learned counsels, learned Assistant Attorney-General, learned Assistant Advocate-General, other Law Officers and members of the Committee. I also gratefully acknowledge the material assistance rendered by *Rana Shaher Yar*, Research Officer, Lahore High Court, Research Centre.

34. In view of the above terms, this writ petition is disposed of.

(JAWAD HASSAN)
JUDGE

Approved for reporting

JUDGE

Announced in open Court on the 25th day of February 2019

JUDGE